

THE RASHTRIYA RAKSHA UNIVERSITY ACT, 2020

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THE RASHTRIYA RAKSHA UNIVERSITY ACT, 2020

UNION OF INDIA

India

THE RASHTRIYA RAKSHA UNIVERSITY ACT, 2020

Act 31 of 2020

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THE RASHTRIYA RAKSHA UNIVERSITY ACT, 2020

ACT NO. 31 OF 2020

[28th September, 2020.]

An Act to establish and declare an institution to be known as the Rashtriya Raksha University as an institution of national importance and to provide for its incorporation and matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventy-first Year of the Republic of India as follows:?

Chapter I

PRELIMINARY

1.

Short title and commencement.?

(1)

This Act may be called the Rashtriya Raksha University Act, 2020.

(2)

It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.

2.

Declaration of Rashtriya Raksha University as an institution of national importance. ?

Whereas the objects of the Rashtriya Raksha University are such as to make it an institution of national importance, it is hereby declared that the Rashtriya Raksha University is an institution of national importance.

3.

Definitions. ?

In this Act, unless the context otherwise requires,?

(a)

?Academic Council? means the Academic Council of the University referred to in section 17;

(b)

?affiliated college? means an institution recognised as such by the Executive Council in accordance with the provisions of this Act and the Statutes made thereunder;

(c)

?college? means an institution maintained by or admitted to the privileges of the University and includes an affiliated college;

(d)

?Dean? means the Dean of the University appointed under section 25;

(e)

?department? means an academic department of the University;

(f)

?distance education system? means the system of imparting education through any means of communication, such as, broadcasting, telecasting, internet, correspondence courses, seminars, contact programmes or the combination of any two or more such modes;

(g)

?employee? means any person appointed by the University and includes teachers, other academic and non-academic staff of the University;

(h)

?Executive Council? means the Executive Council of the University constituted under section 16;

(i)

?Finance Committee? means the Finance Committee of the University constituted under section 19;

(j)

?Fund? means the Fund of University referred to in section 31;

(k)

?Governing Body? means the Governing Body of the University constituted under section 13;

(l)

?notification? means a notification published in the Official Gazette;

(m)

?Pro Vice-Chancellor? means the Pro Vice-Chancellor of the University appointed under section 23;

(n)

?Registrar? means the Registrar of the University appointed under section 24;

(o)

?School? means a school of study of the University;

(p)

?Statutes? and ?Ordinances? mean, respectively, the Statutes and Ordinances of the University made under this Act;

(q)

?student? means a student of the University and includes any person who has enrolled for pursuing any course of study in the University;

(r)

?teachers? means professors, associate professors and assistant professors appointed or recognised as such by Statutes for the purposes of imparting instruction in the University or for giving guidance for research or rendering assistance to students for pursuing any course of study in the University;

- (s)
?University? means the Rashtriya Raksha University established under section 4;
(t)
?Vice-Chancellor? means the Vice-Chancellor of the University appointed under section 22.

Chapter II

ESTABLISHMENT OF UNIVERSITY

4.

Establishment and incorporation of University.?

- (1)
The Raksha Shakti University in the State of Gujarat, established under the Raksha Shakti University Act, 2009 (Gujarat Act 14 of 2009), shall be established as a body corporate under this Act by the name of Rashtriya Raksha University.

(2)
The Rashtriya Raksha University shall be a body corporate having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract, and shall, by the said name, sue or be sued.

(3)
The Headquarters of the University shall be at Gandhinagar in the State of Gujarat.

(4)
The University may establish and maintain centres and campuses at such other places in India and abroad as it may deem fit.

5.
Effect of incorporation of University.? On and from the date of commencement of this Act,?

(a)
any reference to the Raksha Shakti University in any contract or other instrument shall be deemed as a reference to the University;

(b)
all property, movable and immovable, of or belonging to the Raksha Shakti University shall vest in the University;

(c)
all rights and liabilities of the Raksha Shakti University shall be transferred to, and be the rights and liabilities of, the University;

(d)
every person employed by the Raksha Shakti University immediately before the commencement of this Act shall hold his office or service in the University by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same if this Act had not been enacted, and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by the Statutes:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the University in accordance with the term of the contract with the employee or, if no provision is made therein in this behalf, on payment to him by the University of compensation equivalent to three months' remuneration in case of permanent employees and one month's remuneration in the case of other employees:

Provided further that every person employed before the commencement of this Act, pending the execution of a contract, shall be deemed to have been appointed in accordance with the provisions of a contract consistent with the provisions of this Act and the Statutes:

Provided also that any reference, by whatever form of words, to the Vice-Chancellor of the Raksha Shakti University in any law for the time being in force, or in any instrument or other document, shall be construed as a reference to the Vice-Chancellor of the University;

(e)
every person pursuing any academic or research course in every existing institute or department under Raksha Shakti

University, immediately before commencement of this Act, shall be deemed to have migrated and registered with the corresponding institute or department, on such commencement at the same level of course in the University from which such person migrated and shall continue to pursue such academic or research course in the University;

(f)

all suits and other legal proceedings instituted by or against Raksha Shakti University, immediately before the commencement of this Act, shall be continued or instituted by or against the University;

(g)

all colleges, institutions, faculties and departments affiliated to, or admitted to the privileges of, or maintained by, the Raksha Shakti University shall stand affiliated to, or admitted to the privilege of, or maintained by, the University.

6.

Objects of University.?

The objects of the University shall be to promote global standards and to provide?

(a)

dynamic and high standards of learning and research;

(b)

working environment dedicated to the advancement and dissemination of education, research, training and scholarship of the highest quality in the domain of policing including coastal policing, security, law enforcement, criminal justice, cyber security, cyber crime, artificial intelligence and related areas of internal security; and

(c)

public safety with a view to build human capital having the highest ideals of citizenship and citizen centric services with special reference to women, weaker sections and minorities, who are endowed with the necessary intellectual acumen, moral commitment and professional competence to meet hands-on, the challenges of crime, justice and public safety in a free society.

7.

Powers and functions of University.?

(1)

Subject to the provisions of this Act, the University shall exercise the following powers and perform the following functions, namely:?

(a)

to provide instructions and research in such branches of police sciences including coastal policing, security, cyber security, artificial intelligence, cyber crime, risk management, social sciences including studies related to gender sensitisation, minorities and weaker sections, juvenile justice and such other subjects relevant for the Government as well as private sector, as the University may think fit, and for the advancement of learning, research and dissemination of knowledge in such branches;

(b)

to plan and prescribe courses of study such as degrees, diplomas and certificates including in-service courses of short and long duration;

(c)

to endeavour to design and conduct through its affiliated colleges, integrated courses including post-matriculation in policing related or allied subjects;

(d)

to hold examinations and grant degrees, diplomas, certificates and other academic distinctions;

(e)

to confer honorary degrees or other distinctions;

(f)

to grant, subject to such conditions as the University may determine, diplomas or certificates to, of evaluation or any other method of testing, and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(g)

to provide facilities through distance education system to such persons as it may determine;

(h)

to introduce semester system, continuous evaluation and choice-based credit system and enter into agreements with other Universities and academic institutions for credit transfer and joint degree programmes;

(i)

to obtain accreditation from the National Assessment and Accreditation Council or any other accrediting agency at the national level;

(j)

to introduce e-governance with an effective management information system;

(k)

to fix, demand and receive fees and other charges;

(l)

to establish, maintain and manage colleges, institutions and halls in other States and Union territories and hostels for the residence of students;

(m)

to establish such centres and specialised laboratories or other units for research and instructions as are, in the opinion of the University, necessary for the furtherance of its objects;

(n)

to supervise and control the residence and regulate the discipline of students of the University and to make arrangements for promoting their health, general welfare, cultural and corporate life;

(o)

to institute academic and other posts and to make appointments thereto (except in the case of the Vice-Chancellor) as may be necessary for imparting instructions and managing all affairs of the University;

(p)

to appoint persons working in any other University or academic institution, including those located outside the country as teachers of the University for a specified period;

(q)

to co-operate, collaborate or partner or associate with educational or other institutions and organisations, public and private, including those located outside the country having objects wholly or partly similar to those of the University by exchange of teachers and scholars and generally in such manner as may be conducive to their common objects;

(r)

to institute and award fellowships, scholarships, exhibitions, prizes and medals;

(s)

to provide for the preparation of instructional material, including related software and other audio-visual aids;

(t)

to make provisions for research and development in areas of core competence of the University;

(u)

to enter into, carry out, vary or cancel contracts;

(v)

to provide, control and maintain discipline among the students and all categories of employees and to lay down the conditions of service of such employees including their code of conduct;

(w)

to establish and maintain such infrastructure as may be necessary;

(x)

to set up campuses across the country and off-shore campuses as per requirement;

(y)

to admit foreign students, Overseas Citizen of India card holder, Person of Indian Origin, non-resident Indian, children of Indian workers in Gulf and South East Asian Countries, in such manner and as may be laid down in the Statutes;

(z)

to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the University.

(2)

Notwithstanding anything contained in sub-section (1), the University shall not dispose of in any manner any immovable

property without the prior approval of the Central Government.

8.

Jurisdiction of University. ?The jurisdiction of the University shall extend to the whole of India.

9.

University to be open to all races, creeds and classes.?

(1)

The University shall be open to all persons irrespective of gender, race, caste, creed, disability, domicile, ethnicity, social or economic background.

(2)

No bequest, donation or transfer of any property shall be accepted by the University which in the opinion of the Executive Council involves conditions or obligations opposed to the spirit and object of this section.

(3)

Admissions to every academic programme of study in the University shall be based on merit assessed through transparent and reasonable criteria disclosed prior to the commencement of the process of admission by the University: Provided that the University shall be a Central Educational Institution for the purposes of the Central Educational Institutions (Reservation in Admission) Act, 2006 (

5 of 2007

).

10.

Admission of students. ?

(1)

It shall be the endeavour of the University to take necessary measures to maintain an all-India character, high standard of teaching and research.

(2)

Admission of students for courses in the University shall be made on an all-India basis in such manner as may be specified in the Ordinances.

(3)

Admission of students on international basis may be made in such manner as may be laid down in the Statutes and the directions or instructions or guidelines issued by the Central Government in this behalf.

11.

Teaching at University.?

All teaching at the University shall be in accordance with the Statutes and Ordinances made in this behalf.

Chapter III

AUTHORITIES OF UNIVERSITY

12.

Authorities of University. ?

The following shall be the authorities of the University, namely:?

(a)

Governing Body;

(b)

Executive Council;

(c)

Academic Council;

(d)

Finance Committee; and

(e)

such other authorities as may be laid down in the Statutes to be the authorities of the University.

13.

Governing Body. ?

(1)

The Central Government may, by the notification in the Official Gazette, constitute a Governing Body of the University

from such date as it may specify therein.

(2)

The Governing Body shall consist of not more than fifteen members including the Chairperson, with majority of members from academia, industry and relevant professional fields, to be nominated by the Central Government including the following, namely:?

(a)

Chairperson;

(b)

Vice-Chancellor of the University, ex officio;

(c)

one representative of the Ministry of Home Affairs not below the rank of Joint Secretary, ex officio;

(d)

an officer of Indian Legal Service, not below the rank of Joint Secretary, to be nominated by the Central Government, ex officio;

(e)

two representatives of the Government of Gujarat being officers not below the rank of Secretary in that Government;

(f)

one representative of State Police Universities by rotation;

(g)

one person of eminence from the academia or field of education;

(h)

one person of eminence or expertise from the industry or corporate sector;

(i)

one person to be an expert of global eminence from a field having relevance to the objects of the University;

(j)

not more than three persons having expertise in defence, policing, internal security and allied fields.

(3)

The Central Government may, in consultation with such State Governments as it deems fit, appoint the Chairperson of the Governing Body, who shall be an eminent person from the field of academia, defence, security, law enforcement or internal security.

14.

Term of office, vacancies among, and allowances payable to, members of Governing Body. ?

(1)

Save as otherwise provided in this section, the term of office of a member of the Governing Body, other than an ex officio member, shall be for a period of three years from the date of nomination.

(2)

The term of office of an ex officio member shall continue so long as he holds the office by virtue of which he is a member.

(3)

The term of office of a member nominated to fill a casual vacancy shall continue for the remainder of the term of the member in whose place he has been nominated.

(4)

Notwithstanding anything contained in this section, an outgoing member shall, unless the Governing Body otherwise directs, continue in office until another person is nominated as a member in his place.

(5)

The members of the Governing Body shall be entitled to such travelling and other allowances as may be laid down in the Statutes, but no member shall be entitled to any salary by reason of this sub-section.

15.

Powers and functions of Governing Body. ?

(1)

Subject to the provisions of this Act, the Governing Body of the University shall be responsible for the general policy

making, superintendence, direction and control of the affairs of the University and shall exercise all the powers of the University not otherwise provided for by this Act, the Statutes and the Ordinances, and shall have the power to review the acts of the Academic Council.

(2)

It shall be the general duty of the Governing Body to co-ordinate the activities of the University.

(3)

Without prejudice to the provisions of sub-section (2), the Governing Body shall perform the following functions, namely:—

(a)

to formulate and review the broad policies and programmes of the University and suggest measures for the development of the University;

(b)

to advise on matters relating to the duration of the courses, degrees and other academic distinctions to be conferred by the University, admission standards and other academic matters;

(c)

to lay down policy regarding cadres, methods of recruitment and conditions of service of employees, institution of scholarships and fellowships, levying of fees and other matters of common interest;

(d)

to examine the development plans of the University and to approve such of them as are considered necessary and also to indicate broadly the financial implications of such approved plans;

(e)

to examine the annual budget estimates of the University and to recommend to the Central Government the allocation of funds for that purpose;

(f)

to lay down the policy and take decisions on questions of policy relating to the administration and working of the University;

(g)

to institute courses of study;

(h)

to make Statutes;

(i)

to institute and appoint persons to academic as well as other posts;

(j)

to make necessary recommendation in matters for the furtherance of the objective of the University;

(k)

to consider and direct the Executive Council to amend or repeal Ordinances;

(l)

to consider and pass resolutions on the annual report, annual accounts and the budget estimates of the University for the next financial year, together with a statement of its development plans, submitted by the Executive Council and Academic Council, as it thinks fit;

(m)

to delegate any of its powers to the Executive Council, Vice-Chancellor, Pro Vice-Chancellors, Deans, Registrar or any authority of the University or to a committee or to any other officer or employee, of the University;

(n)

to exercise such other powers and perform such other duties as may be conferred or imposed upon it by this Act or the Statutes.

(4)

The Governing Body shall have the power to appoint such committees as it considers necessary for the exercise of its powers and the performance of its duties under this Act.

16.

Executive Council.?

(1)

The Executive Council shall be the principal executive body of the University.

(2)

The Vice-Chancellor shall be the ex officio Chairperson of the Executive Council.

(3)

The constitution of the Executive Council, the term of office of its members and its powers and functions shall be such as may be laid down in the Statutes:

Provided that such number of members as may be laid down in the Statutes shall be from among the members of the Governing Body.

17.

Academic Council.?

The Academic Council of the University shall consist of the following persons, namely:?

(a)

the Vice-Chancellor shall be the ex officio Chairperson of the Academic Council;

(b)

the professors appointed or recognised as such by the University for the purpose of imparting instruction;

(c)

three persons to be appointed by the Governing Body from among persons of national or international eminence in the industry or academia having relevance to the objects of the University;

(d)

two persons, not being employees of the University, to be nominated by the Vice-Chancellor, from amongst educationists of repute;

(e)

one person with wide experience in policing and internal security on rotation from States and Union territories to be nominated by the Central Government; and

(f)

two persons from international universities to be nominated by the Governing Body.

18.

Functions of Academic Council. ?

The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and Ordinances made thereunder, co-ordinate and exercise control and general supervision over the academic policies of the University and shall be responsible for the maintenance of standards of learning, education, instruction, evaluation and examinations within the University and shall exercise such other powers and perform such other functions as may be conferred or imposed upon it by the Statutes.

19.

Finance Committee.?

The constitution, powers and functions of the Finance Committee shall be such as may be laid down in the Statutes.

20.

Board for Affiliation and Recognition.?

(1)

The Board for Affiliation and Recognition shall be responsible for admitting colleges and institutions to the privileges of the University.

(2)

The constitution of the Board for Affiliation and Recognition, the term of office of its members and its powers and duties shall be such as may be laid down in the Statutes.

21.

Officers of University.?

The following shall be the officers of the University, namely:?

(a)

Vice-Chancellor;

(b)

Pro Vice-Chancellor;

(c)

Registrar;

(d)

Dean;

(e)

Finance Officer; and

(f)

such other officers as may be laid down in the Statutes to be officers of the University.

22.

Vice-Chancellor.?

(1)

The Central Government may, in consultation with such State Governments as it deems fit, appoint the Vice-Chancellor of the University, who shall be a person possessing the highest level of competence, integrity, moral and institutional commitment, with extensive knowledge in policing or research or administration or social sciences, preferably having wide experience in police training and internal security or a distinguished academician with a minimum of ten years administrative experience in a reputed research or academic organisation.

(2)

The Vice-Chancellor shall be principal academic and chief executive officer of the University and shall be responsible for the proper administration of the University and for the imparting of instruction and maintenance of discipline therein.

(3)

The Vice-Chancellor shall submit annual reports and accounts to the Governing Body.

(4)

It shall be the duty of the Vice-Chancellor to ensure that decisions taken by the Governing Body are implemented.

(5)

The Vice-Chancellor shall ordinarily preside over the meetings of the Academic Council and convocations of the University.

(6)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be assigned to him by this Act or laid down in the Statutes or Ordinances.

23.

Pro Vice-Chancellor.?

The Pro Vice-Chancellor of the University shall be appointed in such manner, on such emoluments and other conditions of service and shall exercise such powers and perform such duties, as may be laid down in the Statutes.

24.

Registrar.?

(1)

The Registrar of the University shall be appointed in such manner and on such terms and conditions as may be laid down in the Statutes.

(2)

The Registrar shall be the custodian of records, common seal, funds of the University and such other property of the University as the Governing Body shall commit to his charge.

(3)

The Registrar shall act as the Secretary of the Governing Body, the Executive Council, the Academic Council and such other committees as may be laid down in the Statutes.

(4)

The Registrar shall be responsible to the Vice-Chancellor for the proper discharge of his functions.

(5)

The Registrar shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes or by the Vice-Chancellor.

25.

Dean. ?

The Dean of the University shall be appointed in such manner, on such emoluments and other conditions of service and shall exercise such powers and perform such duties, as may be laid down in the Statutes.

26.

Finance Officer. ?

The Finance Officer shall be appointed in such manner, on such emoluments and other conditions of service and shall exercise such powers and perform such duties, as may be laid down in the Statutes.

27.

Other authorities and officers. ?

The powers and duties of other authorities and officers, other than those hereinbefore mentioned, of the University including their terms and conditions of service shall be such as may be laid down in the Statutes.

28.

Grants by Central Government. ?

For the purpose of enabling the University to discharge its functions efficiently under this Act, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the University in each financial year such sums of money in such manner as it may think fit.

29.

Grants by State Governments. ?

The University may receive such sums of money as grants-in- aid annually or as one-time grant from any State Government.

Chapter IV

ACCOUNTS AND AUDIT

30.

Corpus of University.?

The University may receive funds from the Central Government or State Governments or other sources or use its funds to maintain and operate a corpus of the University.

31.

Fund.?

(1)

The University shall maintain a Fund to which shall be credited?

(a)

all moneys provided by the Central Government;

(b)

all moneys received from State Governments;

(c)

all fees and other charges received by the University;

(d)

all moneys received by the University by way of grants, gifts, donations, benefactions, bequests or transfers; and

(e)

all moneys received by the University in any other manner or from any other source.

(2)

All moneys credited to the Fund of the University shall be deposited in such banks or invested in such manner as the University may, with the approval of the Central Government, decide.

(3)

The Fund of the University shall be applied towards meeting its expenses including expenditure incurred in the exercise of its powers and discharge of its duties under this Act.

32.

Accounts and audit.?

(1)

The University shall maintain proper accounts and other relevant records and prepare an annual statement of accounts including the balance-sheet in such form and accounting standard as may be specified, by notification, by the Central

Government in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the University shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by it in connection with such audit shall be payable by it to the Comptroller and Auditor-General of India.

(3)

The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the University shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts, and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the University.

(4)

The accounts of the University as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before each House of Parliament.

33.

Pension and provident fund.?

(1)

The University may constitute for the benefit of its employees such provident or pension fund or provide such insurance scheme as it may deem fit in such manner and subject to such conditions as may be laid down in the Statutes.

(2)

Where any provident fund has been constituted under sub-section (1), the Central Government may declare that the provisions of the Provident Funds Act, 1925 (

19 of 1925

) shall apply to such fund as if it were a Government provident fund.

Chapter V

ANNUAL REPORT AND APPOINTMENTS

34.

Annual report of University. ?

(1)

The annual report of the University shall be prepared by the Executive Council, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and an outcome based assessment of the research being undertaken by it, and be submitted to the Governing Body on or before such date as may be specified and the Governing Body shall consider the report in its annual meeting.

(2)

The annual report as approved by the Governing Body shall be published and placed on the website of the University.

(3)

The Executive Council shall prepare and release for every year a report, in English and in Hindi, the working of the University in the previous year on or before the expiry of nine months from the close of financial year, and a copy of the same, together with an audited statement of accounts showing the income and expenditure for the previous year shall be submitted to the Central Government within that stipulated time, and the same may be caused to be laid before each House of Parliament.

35.

Appointments.?

All appointments of the employees of the University, except that of the Vice-Chancellor, shall be made in accordance with the procedure laid down in the Statutes, by?

(a)

the Governing Body, if the appointment is made on the academic staff in the post of Assistant Professor or above, or if the appointment is made on the non-academic staff, in any post equivalent to Group ?A? and above;

(b)

by the Vice-Chancellor, in any other case.

Chapter VI

STATUTES AND ORDINANCES

36.

Statutes. ?

Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:?

- (a)
the manner of recognition of an institution by the Executive Council as affiliated college;
- (b)
the constitution, powers and functions of, authorities and other bodies including disciplinary committee and examination committee, of the University as may be constituted from time to time;
- (c)
the appointment and continuance in office of the members of the said authorities and bodies, the filling up of vacancies of members, and all other matters relating to those authorities and other bodies for which it may be necessary or desirable to provide;
- (d)
the appointment, powers and duties of the officers of the University and their emoluments;
- (e)
the appointment of teachers, academic staff and other employees of the University, their emoluments and conditions of service;
- (f)
the appointment of teachers and academic staff working in any other University or organisation for a specific period for undertaking a joint project;
- (g)
the conditions of service of employees including provisions for pension, insurance, provident fund, the manner of termination of service and disciplinary action;
- (h)
the principles governing the seniority of service of the employees of the University;
- (i)
the procedure for arbitration in cases of dispute between employees or students and the University;
- (j)
the procedure for appeal to the Governing Body by any employee or student against the action of any officer or authority of the University;
- (k)
the conferment of autonomous status on a college or an institution or a department;
- (l)
the establishment and abolition of Schools, departments, centres, halls, colleges and institutions;
- (m)
the manner of co-operation and collaboration with other Universities, institutions and other agencies including learned bodies, associations and the private sector;
- (n)
the conferment of honorary degrees;
- (o)
the withdrawal of degrees, diplomas, certificates and other academic distinctions;
- (p)
the management of colleges and institutions established by the University;
- (q)
the delegation of powers vested in the authorities or officers of the University;
- (r)
the maintenance of discipline among the employees and students; and
- (s)
any other matter which by this Act is to be, or may be, laid down in the Statutes.

37.

Statutes how made.?

(1)

The first Statute of the University shall be made by the Governing Body with the prior approval of the Central Government and a copy of the same shall be laid, as soon as may be it is made, before each House of Parliament.

(2)

The Governing Body may, from time to time, make new or additional Statutes or may amend or repeal the Statutes referred to in sub-section (1):

Provided that the Governing Body shall not make, amend or repeal any Statute affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Governing Body.

38.

Ordinances. ?

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:?

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the medium of instruction and examination;

(d)

the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(e)

the fees to be charged for courses of study in the University and for admission to examinations, degrees and diplomas to the University;

(f)

the conditions and institution for award of fellowships, scholarships, studentships, medals and prizes;

(g)

the conduct of examination including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(h)

the conditions of residence of the students of the University;

(i)

the special arrangements, if any, which may be made for the residence and teaching of women students and the specifying of special courses of studies for them;

(j)

the establishment of centres of studies, boards of studies, specialised laboratories and other committees;

(k)

the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(l)

the setting up of machinery for redressal of grievances of employees and students; and

(m)

any other matter which by this Act or Statutes, is to be, or may be, specified in the Ordinances.

39.

Ordinances how made.?

(1)

Save as otherwise provided in this section, Ordinances shall be made by the Executive Council.

(2)

All Ordinances made by the Executive Council shall have effect from such date as it may direct, but every Ordinance so

made shall be submitted, as soon as may be, to the Governing Body and shall be considered by the Governing Body at its next succeeding meeting.

(3)

The Governing Body shall have power by resolution to approve, modify or cancel any such Ordinance and such Ordinance shall from the date of such resolution stand modified accordingly or cancelled, as the case may be.

Chapter VII

TRIBUNAL OF ARBITRATION

40.

Tribunal of Arbitration for employees.?

(1)

Every employee of the University shall be appointed under a written contract, which shall be retained by the University and a copy of the same shall be given to the employee concerned.

(2)

Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Executive Council, one member nominated by the employee concerned and chaired by an umpire appointed by the Governing Body.

(3)

The decision of the Tribunal of Arbitration shall be final and no suit shall lie in any civil court in respect of the matters decided by the said Tribunal: Provided that nothing in this sub-section shall preclude the employee from availing of the judicial remedies available under articles 32 and 226 of the Constitution.

(4)

Every request made by the employee under sub-section (2) shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration and Conciliation Act, 1996 (26 of 1996

).

(5)

The procedure for regulating the work of the Tribunal shall be laid down in the Statutes.

41.

Redressal for debarment from examination and disciplinary action against students.?

(1)

Any student or candidate for an examination whose name has been removed from the rolls of the University by an order of the Vice-Chancellor on the recommendation of the disciplinary committee or examination committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such order by him, appeal to the Governing Body and the Governing Body may confirm, modify or reverse the decision of the Vice-Chancellor.

(2)

Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections

(2)

, (3), (4) and (5) of section 40 shall apply to a reference made under this sub-section.

Chapter VIII

MISCELLANEOUS

42.

Disputes as to constitution of authorities and bodies.?

If any question arises as to whether any person has been duly elected or appointed as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Central Government, and the decision of that Government thereon shall be final.

43.

Power of Central Government to make rules in respect of matters relating to Governing Body.?

(1)

The Central Government may, after previous publication, make rules to carry out the purposes relating to Governing

Body.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:?

(a)

the manner of filling vacancies among the members of the Governing Body;

(b)

the disqualifications for being chosen as, and for being a member of the Governing Body;

(c)

the circumstances in which, and the authority by which, members may be removed;

(d)

the meetings of the Governing Body and the procedure for conduct of business;

(e)

the travelling and other allowances payable to members of the Governing Body; and

(f)

the manner in which functions of the Governing Body may be exercised.

44.

Acts and proceeding not to be invalidated by vacancies, etc.?

No act of the Governing Body or any other body set up under this Act or the Statutes, shall be invalid merely by reason of?

(a)

any vacancy in, or defect in the constitution thereof; or

(b)

any defect in the election, nomination or appointment of a person acting as a member thereof; or

(c)

any irregularity in its procedure not affecting the merits of the case.

45.

University to be public authority under Right to Information Act.?

The provisions of the Right to Information Act, 2005 (

22 of 2005

) shall apply to the University, as if it were a public authority defined in clause (h) of section 2 of that Act.

46.

Power of Central Government to review work and progress made and to hold enquiries. ?

(1)

The Central Government may, from time to time, appoint one or more persons to review the work and progress of the University, including colleges and institutions administered by it, and hold enquiries thereof and to submit a report thereon in such manner as the Central Government may direct.

(2)

Upon receipt of any such report, the Central Government may, after obtaining the views of the Governing Body thereon through the Vice-Chancellor, take such action and issue such directions as it considers necessary in respect of any of the matters dealt with in the report and the University shall be bound to comply with such directions.

47.

Protection of action taken in good faith.?

No suit or other legal proceedings shall lie against any officer or other employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances made thereunder.

48.

Residuary provisions. ?

(1)

The Governing Body shall have the authority to deal with any matter pertaining to the University and not specifically dealt with in this Act.

(2)

The decision of the Governing Body on all such matters shall, subject to revision by the Central Government, be final.

49.

Power of Central Government to issue directions.?

The University shall carry out such directions as may be issued to it from time to time by the Central Government for the efficient administration of this Act.

50.

Power to remove difficulties.?

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions or give such directions not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of the period of two years from the date of commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

51.

Laying of rules, Statutes, Ordinances and notifications.-

(1)

Every rule, Statute or Ordinance made and every notification issued under this Act shall be published in the Official Gazette.

(2)

Every rule, Statute or Ordinance made and every notification issued under this Act, shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule, Statute, Ordinance or notification or both Houses agree that the rule, Statute, Ordinance or notification should not be made, the rule, Statute, Ordinance or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule, Statute, Ordinance or notification.

52.

Transitional provisions. ?

(1)

The existing Board of Governors, Finance Committee and other committees functioning in the Raksha Shakti University, Gujarat shall continue to function till such time the University constitutes the authorities or committees under the provisions of this Act.

(2)

The existing officers of the Raksha Shakti University, Gujarat such as, Vice-Chancellor, Registrar or Finance Officer, shall continue to function till such time the officers are appointed under the provisions of this Act.

53.

Repeal of Gujarat Act 14 of 2009.?

(1)

The Raksha Shakti University Act, 2009 is hereby repealed.

(2)

Notwithstanding such repeal,?

(a)

all appointments made, orders issued, degrees and other academic distinctions conferred, diplomas and certificates awarded, privileges granted, or other things done under the Raksha Shakti University Act, 2009, shall be deemed to have been respectively made, issued, conferred, awarded, granted or done under the corresponding provisions of this Act and, except as otherwise provided by or under this Act or the Statutes, continue in force unless and until they are superseded by any order made under this Act or the Statutes; and

(b)

all the proceedings of selection committee or any other authority, if any, for the appointment or promotion of teachers and other employees that took place before the commencement of this Act and all actions of the concerned authorities in respect of the recommendations of such selection committee or authority, if any, where no orders of appointment on the basis thereof were passed before the commencement of this Act shall, notwithstanding that the procedure for selection has been modified by this Act, be deemed to have been valid but further proceedings in connection with such pending selections shall be taken in accordance with the provisions of this Act and be continued from the stage where they stood immediately before such commencement, except if the concerned authorities take a decision to the contrary.

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